

AGREEMENT TO SELL

This agreement to sell (hereinafter referred to as the "**Agreement**") is executed at Gurgaon on the date Saturday, 16th April 2018,

between

1) Veena Hiro Wadhvani W/o Hiro Mulram Wadhvani and 2) Mr. Hiro Mulram Wadhvani both residing at **House No.** 15, Silver Oaks Avenue, DLF City, Gurgaon (hereinafter jointly referred to as the **"Seller/ First Party"**) of the One part.

IN FAVOUR OF

1) Rohan Prasad S/o Mr. Ramjit Prasad and 2) Ananya Prasad w/o Mr. _____ both
R/o D-103, Nivedita Kunj, R.K. Puram, New Delhi-110022 (hereinafter
referred to as the "**Buyer/ Second Party**") of the Second Part.

The terms "Seller/First Party" and the "Buyer/Second Party", unless repugnant to the context or meaning thereof, be deemed to mean and include them, their respective legal heirs, successors, representatives, nominees and permitted assignees.

Hereinafter, the First Party and the Second Party shall be jointly referred to as the "**Parties**".

WHEREAS:

A. The First Party has been allotted a unit No. **TPD D-F05-501** (hereinafter referred to as the "**Said Apartment**") under **Sales Order # 602143** in the project "**Sky Terraces at The Palm Drive**" located in Sector-66, Gurgaon (hereinafter referred to as the "**Said Project**"), developed by Emaar MGF Pvt. Ltd. (hereinafter referred to as the "**Developer**"). The total saleable area as per the Builder Buyer Agreement dated 29 April 2015 is 3150 sq. ft. (292.64 sq. mtr.) which had been revised to **3221.89 sq. ft.** (299.32 sq. mtr) at the time of offer of possession.

By AND AMONGST:

EMAAR MGF LAND LIMITED, a company incorporated and registered under provisions of the Companies Act, 1956, having its registered office at 28, ECE House, 1st floor, Kasturba Gandhi Marg, New Delhi – 110001, hereinafter referred to as '**EMAAR MGF**' or '**Company**' (which expression shall, unless contrary or repugnant to the context hereof, include its representatives, group companies, affiliates, associates, holding companies, parent companies, nominees, and successors), and forming part of this agreement of the ONE PART:

AND

M/s. Active Promoters Private Limited, a company incorporated and registered under the provisions of the Companies Act, 1956, having its registered office at 17-B, Asaf Ali Road, New Delhi- 110002 acting through its authorized signatory, hereinafter referred to as "**APPL**" (which expression shall, unless contrary or repugnant to the context hereof, include its successors-in-interest, liquidators and assigns, representatives, group companies affiliates, holding companies, parent companies, nominees and successors), of the **SECOND PARTY**;

AND

Veena Hiko Madhavi Infrastructure Private Limited (erstwhile B.C.C. Properties Pvt. Ltd.), a company incorporated and existing under the Companies Act, 1956 having its registered office at K-1 Green Park, New Delhi, acting through its authorized signatory hereinafter referred to as "**CIPL**" (which expression shall, unless contrary or repugnant to the context hereof, include its successors-in-interest, liquidators and assigns, representatives, group companies, affiliates, associates, holding companies, parent companies, nominees and successors), of the **THIRD PARTY**;

AND

1) _____ W/o Mr. _____ and 2) Mr. _____
_____ both residing at House No. _____
_____ Hereinafter referred to as the "**Builder Buyer Agreement**" and annexed as Schedule-1. Revised area of the said apartment is 3221.89 square feet (299.32 Sq. Mtr). It was allotted at a Net Basic Sale Price of **Rs. 5,200/-** (Rupees Five Thousand Two Hundred only) per square feet i.e., at a total Net Sale Price of **INR 1,91,99,868/- (Rupees One Crore Ninety-One Lakhs, Ninety-Nine Thousand, Eight Hundred and Sixty-Eight Only)**.

- B. The Said Apartment has been handed over to the First Party and the First Party is in complete possession of the Said Apartment after making full and final payment to the Builder.
- C. The First Party has agreed to sell, transfer and convey all his/her right, title(s), interest and claims in the Said Apartment to the Second Party and the Second Party after satisfying itself is willing to buy the Said Apartment from the First Party on the consideration and terms and conditions arrived and agreed upon after mutual negotiations and reduced in writing here under in the Agreement.

NOW THE AGREEMENT TO SELL WITNESSTH AS UNDER:

- 1. The First Party has agreed to sell, transfer and convey all his/her rights, title, interest and claims in the Said Apartment to the Second Party at all-inclusive total sale consideration of **Rs.2,50,00,000/- (Rupees Two Crores Fifty Lakhs Only)** (hereinafter referred to as the "**Total Sale Consideration**") which includes PLC, EDC/IDC, 02 Car Parking, IFMS, H-VAT and all other charges.

2. Of the Total Sale Consideration, the Second Party has already paid an advance sum of **Rs.5,00,000/- (Five Lakhs Only)** to the first party via **Cheque# 219019** dated 21 March 2018 drawn on Central Bank of India and both the parties have agreed to sign the sale agreement on payment of 10% of total sale value, which is **Rs.25,00,000/- (Rupees Twenty-Five Lakhs Only)** less the amount already paid in advance.
3. Of the Total Sale Consideration, the Second Party will deduct Tax (1% TDS) at source Rs 2,50,000/- as per the applicable laws and the Balance Payment of **Rs.2,22,50,000/- (Rupees Two Crores Twenty-Two Lakhs & Fifty Thousand Only)** to be paid by the Second Party to the First Party on or before execution of Sale Deed.
4. That the TDS deduction (1% of total sale value) and the said Payment will be made equally to both the beneficiaries/ Sellers.
5. That both the parties have mutually agreed to conclude the transaction within 45 days from the date of signing the agreement to sell which is on or before **30th May 2018**.
6. The Second Party shall pay to the First Party, the Net Sales Consideration in the following manner

Date	Amount	In Favor Of	Description
21-Mar-2018	INR 5,00,000	Mrs. Veena Hiro Wadhwani	On Signing the Earnest Money Document (Bayana).
17-Apr-2018	INR 20,00,000	Mrs. Veena Hiro Wadhwani & Mr. Hiro Mulram Wadhwani	On Signing the agreement to sell.
30 May 2018	INR 1,25,000/-	Tax Deductible at Source – Ms. Veena Hiro Wadhwani's PAN no. AAAPW7816N	50% of TDS (challan to be shared with Seller)
30 May 2018	INR 1,25,000/-	Tax Deductible at Source – Mr. Hiro Mulram Wadhwani's PAN no. AAAPW5059P	50% of TDS (challan to be shared with Seller)
30 May 2018	INR 2,22,50,000/-	Favoring Mrs. Veena Hiro Wadhwani & Mr. Hiro Wadhwani	Full & Final Payment on or before registration of property.

7. The payments made by the Second Party vide cheque shall be subject to realization. The default in payment/ realization of cheques shall entitle the First Party to cancel the Agreement and agreed terms.
8. The First Party shall arrange all the documentation, approvals, loan clearance certificate, no encumbrance certificate from the bank and all other formalities including the signing of

documents for transfer of property and the documents required by the Developer for the transfer of the Said Apartment in the favor of the Second Party or its nominee as the case may be.

9. In the event the First Party and /or the Developer does not co-operate or does not transfer the ownership of the said apartment for any reason whatsoever in the name of the Second Party, then the First Party shall refund all the amount received from the Second Party till date without prejudice to any legal remedy available to the First Party.
10. On the payment of agreed consideration as per Paragraph 6 hereinabove, the Second Party shall stand duly discharged from its obligations under this Agreement.
11. The First Party shall complete all the necessary formalities required for the registration of the Said Apartment including those before the concerned officers of the Authorities in the time stipulated by the Second Party.
12. That the First Party assures and represents that there is / are no charges, liens, no Home Loan, encumbrances, court proceeding or any other proceeding from the other authorities, any family dispute or third-party interest created with respect to the Said Apartment and she has clear and marketable title to the Said Apartment and all the legal right to sell the Said Apartment. The First Party covenants that she shall not do any act, deed or thing creating any charge, lien or encumbrance in respect of the Said Apartment.
13. If any of the above assurances extended by the First Party is found to be incorrect and the Second Party suffers any loss, the First Party hereby agrees to return the full amount paid by the Second Party to the First Party and the First Party undertakes to keep the Second Party indemnified against all such losses and damages.
14. On the transfer of the Said Apartment in the name of the Second Party, the First Party would have relinquished all her right, title, interest and claims of any kind whatsoever in the Said Apartment in the favor of Second Party and shall be restrained for all times to raise any claim including a third-party claim on the Said Apartment.
15. With the due execution of this Agreement, the Second Party shall be vested with all the rights to get the Said Apartment transferred in their name and take the possession of, alienate / dispose-off or transfer the Said Apartment in any manner whatsoever and get the sale deed or necessary documents registered in their or their nominees' name.
16. In the event the First Party raises any claim/ interest/ right on the Said Apartment after the transfer of the Said Apartment in the name of the Second Party, then the same shall be unsustainable under law and the First Party agrees to indemnify the Second Party from any loss, damage or injury so occurred.
17. That the First Party shall pay all the outstanding dues, taxes, fees etc. pertaining to the said property till the handover of the apartment.
18. That the Second Party shall pay all the fees, stamp duties, Challans, processing fee and administrative expenses at the time of registration of the said apartment.
19. That for any communication regarding the said property the First Party shall always communicate with the Second Party's Address, **D-103, Nivedita Kunj, Behind D.P.S. R.K. Puram (Sector-10), R.K. Puram, Sector-5, South West Delhi, Delhi-110022** And the Second party shall communicate with the First party's permanent address **15, Silver Oaks Avenue, DLF City, Phase 1, DLF QE, Gurgaon, Haryana-122002.**

Name: 1- Mrs. Veena Hiro Wadhwani .

2- Mr. Hiro Mulram Wadhwani

Signed for and on behalf of **THE FIRST PARTY**

/s/ Veena Hiro Wadhwani _____

Name: 1- Mr. Rohan Prasad

2- Mrs. Ananya Prasad

Signed for and on behalf of **THE SECOND PARTY**

In the presence of following witness(s):

1	Prakash C Pandey	K-1303, The Palm Drive, Sector 66, Gurgaon	/s/ Prakash Pandey
2	Kanwar Lal	House No. 232, P-Sector 15, Part 1, Gurgaon-122001	/s/ Kanwar Lal